

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2006-000997

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PSYCHOTHERAPY IN THE STATE OF COLORADO OF S. SCOTT TATE, M.A., LICENSE NO.1113,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (the "Board") and S. Scott Tate, M.A., ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a psychotherapist in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case Number 2006-000997. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Respondent failed to terminate a relationship with client A, whose identity is known to Respondent, when it was reasonably clear that the client was not benefiting from the relationship and was not likely to gain such benefit in the future.
 - b. Respondent failed to refer client A, whose identity is known to Respondent, to an appropriate practitioner when the problem of the client was beyond his training, experience, or competence.
 - c. In regard to client A, whose identity is known to Respondent, Respondent failed to act in a manner that meets the generally accepted standards of the professional discipline of psychotherapy under which Respondent practices.

5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated C.R.S. § 12-43-222(1) (g), (k) and (l).

6. By virtue of the admissions in paragraph 4, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's license to practice psychotherapy in the State of Colorado is hereby placed on probation for 5 (five) years commencing from the date this Order is fully executed or the date Respondent's practice monitor is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Respondent is not practicing in this state, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a psychotherapist in Colorado, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

10. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

PRACTICE MONITOR

11. During the term of probation, Respondent's practice shall be monitored by a practice monitor. Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three proposed practice monitors for the Board's approval. Respondent shall include a program-approved practice monitor application from each potential monitor, with attached vita/resume. The practice monitor shall meet the following criteria:

a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado.

b. It is recommended that the practice monitor have a minimum of five years experience and has not been subject to professional discipline.

c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

12. Respondent must have a practice monitor approved by the Board within two months after this Order is fully executed. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until a practice monitor is approved.

13. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Board as a part of his first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and any prior practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

14. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

15. Should the Board determine from the practice monitor's evaluation that Respondent cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Board determines, based on the evaluation, he is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Board that he is qualified, competent, and safe to fully practice, Respondent may resume full practice.

16. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of client contact, but at least once a month. During the practice monitoring sessions, Respondent and his practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing psychotherapy in accordance with generally accepted standards of practice and with skill and safety for his clients.

17. The practice monitor shall submit written reports to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board/Director,

the practice monitor shall submit his reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

18. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

19. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her/his clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of psychotherapy.

20. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

21. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct her/his monitoring and report to the Board in accordance with this Order.

MENTAL STATUS EVALUATION

22. Respondent shall undergo a mental status evaluation by a Board-approved mental health provider ("therapy evaluator"). This evaluation shall be conducted so as to enable the therapy evaluator to make findings and recommendations as to whether Respondent has any conditions that may endanger the health or safety of persons under his care, whether Respondent can practice with skill and safety for his clients, and whether Respondent should undergo psychotherapy as a term of probation. As part of this mental status evaluation, the therapy evaluator shall be provided with pertinent information about this case. Respondent agrees to provide the therapy evaluator with any medical or psychological information requested by the therapy evaluator as part of the evaluation, including information and reports from therapists. The therapy evaluator shall provide a written report to the Board setting forth the nature of the evaluation conducted, with findings and recommendations as to whether Respondent has any conditions that may endanger the health or safety of persons under his care, whether Respondent can practice with skill and safety for his clients, and whether Respondent should undergo psychotherapy as a term of probation.

23. If the mental status evaluator recommends that Respondent undergo therapy based on the mental status evaluation or if the Board orders therapy as a term of probation, Respondent shall undergo therapy with a mental health provider approved by the Board ("therapist") as a term of probation. The therapist shall conduct therapy and report to the Board in writing as follows:

a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once every month, unless otherwise approved by the Board based on recommendations of the therapist; and

b. The therapist shall report to the Board in writing both the progress of the therapy and whether Respondent is able to practice with reasonable skill and safety for his clients, and must send a copy of each report to the practice monitor and Respondent. The therapist must submit her/his first report by the fifth day of the month following the first month of the therapy. The therapist shall submit subsequent reports by the fifth day of every third month thereafter (i.e., on a quarterly basis); and

c. In the first report, the therapist shall state that s/he has received and read a copy of this Order, the Board's file, and the evaluator's report, and must state that s/he understands the duties and responsibilities s/he is undertaking as Respondent's therapist.

24. If, at any time, the therapist is of the opinion that Respondent is practicing psychotherapy in a manner that does not meet the generally accepted standards of practice or has a condition that renders him unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming her/his opinion. The therapist shall send a copy of such report to the practice monitor and Respondent when s/he sends the report to the Board. Upon submission of such a report, Respondent shall immediately cease the practice of psychotherapy.

25. Either Respondent or his therapist may terminate the therapeutic relationship upon written notice to the other and the Board no less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event Respondent does not have another Board-approved therapist prior to the termination, Respondent shall cease the practice of psychotherapy until he has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with Respondent and report to the Board in accordance with this Order.

26. If therapy is recommended by the mental status evaluator or required as a term of probation, Respondent cannot practice psychotherapy during the period of probation if he is not undergoing therapy in accordance with this Order, unless otherwise provided by the Board based on the recommendations of the therapist.

CONTINUING EDUCATION

27. During the period of probation, Respondent must successfully complete at least 20 hours each year of Board-approved professional continuing education courses in the areas of: trauma disorders, ethics, standards of care, personality disorders, psychotherapy process, and termination process. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board a certificate of completion.

TERMS AND CONDITIONS

28. Respondent will strictly observe the prohibitions set forth in C.R.S. §12-43-222, and will ensure that he does not engage in any activities that are prohibited and that s/he practices in accordance with the generally accepted standards of practice.

29. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

30. All expenses incurred or associated with the practice evaluation, therapy evaluation, therapy, practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

31. During the pendency of this Order, Respondent agrees that he will provide permission to and allow his practice monitor, therapy evaluator, or therapist to provide records and information obtained in the normal course of practice monitoring, therapy evaluation, or treatment to the Board if the practice monitor, therapy evaluator, or therapist determines that Respondent is not practicing psychotherapy in accordance with generally accepted standards of practice or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care. As part of this Order, Respondent explicitly waives his right to maintain confidentiality of records or information provided to the practice monitor, therapy evaluator, or therapist in the normal course of practice monitoring, therapy evaluation, or treatment if the practice monitor, therapy evaluator, or therapist determines that he is not practicing psychotherapy in accordance with generally accepted standards of practice or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care.

32. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

33. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to C.R.S. § 12-43-224, and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

34. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

35. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of C.R.S. §12-43-222, and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to C.R.S. §12-43-224.

36. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

37. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

38. This Order shall become effective when accepted and signed on behalf of the Board.

39. This Order shall be a public record in the custody of the Board.

RESPONDENT

COLORADO STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS


S. Scott Tate, M.A.
License No. 1113


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Effective Date: This 8th day of
August, 2001.